

Assam Ministers' and Leader of the Opposition's Salaries, Allowances and Amenities Rules, 2018

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No.LLE 30/2018/662, dated 4.10.2018. - In exercise of the powers conferred by section 8(1) of the Assam Ministers' and Leader of the Opposition's Salaries, Allowances and Amenities Act, 2018 (Assam Act No. IX of 2018), the Governor of Assam, in consultation with the Speaker, Assam Legislative Assembly, is hereby pleased to make the following rules namely: -

1.

Short title and commencement.

- (i) These rules may be called the Assam Ministers' and Leader of the Opposition's Salaries, Allowances and Amenities Rules, 2018.

(ii)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application.

- They shall apply to Ministers and Leader of the Opposition, Assam Legislative Assembly.

3.

Definition.

- In these rules, unless the context otherwise requires, -

(i)

"Act" means the Assam Ministers' and Leader of the Opposition's Salaries, Allowances and Amenities Act, 2018;

(ii)

"Minister" or "Ministers" includes Chief Minister, Cabinet Ministers, Ministers of State and Deputy Ministers of the State of Assam;

(iii)

"Leader of the Opposition" means the Leader of the Opposition in the Assam Legislative Assembly;

(iv)

"Assembly" means the Assam Legislative Assembly;

(v)

"Speaker" means the Speaker of the Assam Legislative Assembly;

(vi)

"Deputy Speaker" means the Deputy Speaker of the Assam Legislative Assembly;

(vii)

"Principal Secretary" means the Principal Secretary of the Assam Legislative Assembly;

(viii)

"Member" means the Member of the Assam Legislative Assembly;

(ix)

"Government" means the Government of Assam;

(x)

"Attending Physician" means any registered medical practitioner or any other Medical Officer appointed by the Government in any Government Medical College, Hospital or Dispensary, etc., as the case may be under whom the Member, Ex-Member or their family seeks or avails medical treatment;

(xi)

"Family" means and includes the family of a member consisting of -

(a)

Wife or husband;

(b)

Father and mother ordinarily residing with and wholly dependent on the Member;

(c)

Legitimate children and step children residing with and wholly dependent on the Member;

Note. - (1) Father and mother of a married lady Member shall not be included in her family.

(2)

Adopted children shall be considered to be legitimate children.

(xii)

"Patient" means a Member or a Member of his or her family, or an ex-Member or his or her family who requires medical attendance and treatment;

(xiii)

"Medical Attendance" means attendance in a Government hospital or at the residence of the patient; and

(a)

such Pathological, Bacteriological, Radiological or other method of examination for the purposes of diagnosis as are available in any Government hospital or Laboratory and are considered necessary by the attending Physician; and

(b)

such consultation with any other medical officer or specialist as the attending Physician advises;

(xiv)

"Treatment" means the case of all medical and surgical facilities available at the Government hospital in which the patient is treated;

(xv)

"Day" means a calendar day beginning and ending at midnight, but absence from headquarters which does not exceed twenty-four hours shall be reckoned for the purpose of daily allowances as one day at whenever hour the absence begins and ends;

(xvi)

"Duty" means and includes -

(a)

attending the Assembly Session;

(b)

attending meetings of the House Committee and doing any act connected therewith;

(c)

attending such meeting as may be convened by the Assembly Secretariat under the direction of the Speaker and doing such acts as may be assigned by the Assembly or by the Speaker;

(xvii)

"Camp office" means an office in their constituency for providing better service to the people of his/her constituency; under Section 5 of the Act

4.

Medical facility.

- Chief Minister, Ministers and Leader of the Opposition of Assam Legislative Assembly along with their family shall receive the same Medical Attendance and treatment as are laid down for the highest ranking Government Servants in all Government Hospital, Dispensaries and other recognized Hospital.

Amenities

under Section 6 of the Act

5.

Newspaper allowance.

- Chief Minister shall draw Rs. 2,000 (max.) and Ministers, Leader of the Opposition shall draw Rs. 1,750 (max.) per month for purchasing of newspapers, magazines, etc., at residence in his/her Constituency as well as at Dispur.

Other Allowances

6.

Conveyance allowance.

- Chief Minister shall draw an amount of Rs. 18,750 and Ministers, Leader of the Opposition of Assam Legislative Assembly shall draw an amount of Rs. 15,000 per month subject to produce cash memo/voucher for purchase of fuel as conveyance allowance (POL cost).

7.

Contingency allowance.

- Chief Minister, Ministers and Leader of the Opposition of Assam Legislative Assembly shall draw an amount of Rs. 30,000 for entertaining contractual staff for the camp office at his/her Constituency as follows :

(i)

Computer literate personal asstt.

Rs. 1,2000 p.m.

(ii)

Driver

Rs. 10,000 p.m.

(iii)

Grade IV attendant

Rs. 8,000 p.m.

8.

Mileage.

- Chief Minister, Ministers and Leader of the Opposition, Assam Legislative Assembly shall draw a mileage allowance of fifteen rupees per kilometre for the use of his official car on official duty.

9.

Telephone.

- Leader of the Opposition shall be provided telephone facilities without any ceiling for the purpose of reimbursement of the bills.

10.

Repeal.

- The Leader of Opposition in the Assam Legislative Assembly (Allowances and Privileges) Rule, 1981 and other previous Rules corresponding thereto, if any are hereby repealed.

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